Must we label what our AI produces?

Business: Example Electrical Ltd Date: 23 October 2026

Sources checked: 19 October 2026; corrected points 23 October 2026

Yes. At least one duty of Article 50 applies to you now.

Duties found: limited disclosure of AI content in artistic or fictional works (Art. 50(4), first subparagraph). Also to check: machine-readable marking (Art. 50(2)): not needed while your system only performs standard editing; record why.

What you told us

Role	We develop AI systems or place them on the market under our own name
Uses	We generate or edit images, audio or video that look like real people, places or events
Artistic work	Yes, evidently artistic or fictional
Generates or alters content	Only standard editing
On the market before 2 August 2026	No, or not yet on the market

Findings

FACT Article 50 of the AI Act has applied since 2 August 2026. Paragraphs 1 and 2 address providers, paragraphs 3 and 4 deployers. A deployer is anyone using an AI system under its authority, except in a personal non-professional activity. Where the deployer is a company, its employees acting under its instructions are not separate deployers; the company is.

→ Regulation (EU) 2024/1689, Art. 3(3) and (4), Art. 50, Art. 113, consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-19; Guidelines, annex to C(2026) 5054 final, points 12 to 16 · retrieved 2026-10-23

FACT A deployer that generates or manipulates image, audio or video content constituting a deep fake discloses that the content has been artificially generated or manipulated. A deep fake is AI-generated or manipulated content that resembles existing persons, objects, places, entities or events and would falsely appear to a person to be authentic or truthful.

→ Regulation (EU) 2024/1689, Art. 50(4), first subparagraph, and Art. 3(60) · retrieved 2026-10-19

FACT Where the content forms part of an evidently artistic, creative, satirical, fictional or analogous work, the duty is limited to disclosing the existence of such generated or manipulated content in an appropriate manner that does not hamper the display or enjoyment of the work.

→ Regulation (EU) 2024/1689, Art. 50(4), first subparagraph, and Art. 3(60) · retrieved 2026-10-19

INTERPRETATION A photo-like AI image of a technician in front of a switch cabinet on a website is a deep fake, because it shows a real-looking scene that never happened; a stylised graphic of a lightning bolt is not. Advertising usually cannot rely on the artistic exception.

→ Guidelines C(2026) 5054, section 6.1.1 (point 113 ff.: realistic persons and depictions of professional services count) · retrieved 2026-10-23

FACT From 2 December 2026 it is prohibited to use AI systems that generate realistic intimate or sexual depictions of an identifiable person without explicit consent (Art. 5(1)(ba)).

→ Regulation (EU) 2024/1689, Art. 5(1), points (ba) and (bb), and Art. 113, point (a), consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-23

FACT Providers of AI systems that generate synthetic audio, image, video or text content mark the outputs in a machine-readable format. The duty does not apply to the extent the AI systems perform an assistive function for standard editing or do not substantially alter the input data provided by the deployer or its semantics.

→ Regulation (EU) 2024/1689, Art. 50(2), first and third sentence, consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-23

FACT The information is provided in a clear and distinguishable manner at the latest at the time of the first interaction or exposure, and conforms to the applicable accessibility requirements.

→ Regulation (EU) 2024/1689, Art. 50(5) · retrieved 2026-10-19

FACT Fines for breaches of the transparency obligations of Article 50 go up to EUR 15 000 000 or 3 % of the total worldwide annual turnover, whichever is higher; for SMEs the lower of the two amounts applies.

→ Regulation (EU) 2024/1689, Art. 99(4), point (g), and Art. 99(6) · retrieved 2026-10-19

FACT Paragraphs 1 to 4 do not affect the requirements of Chapter III and are without prejudice to other transparency obligations in Union or national law (Art. 50(6)).

→ Regulation (EU) 2024/1689, Art. 50(6), consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-23

INTERPRETATION A label does not make a use lawful; data protection, personality rights and copyright still apply.

◐ UNCERTAIN Which authority supervises Article 50 is national law. Germany has named the Federal Network Agency (Act of 22 July 2026, in force since 29 July 2026). For Austria, as of 19 October 2026, no official source names the market surveillance authority; the duties apply regardless, because the Regulation is directly applicable.

→ KI-Marktüberwachungs- und Innovationsförderungsgesetz of 22 July 2026, BGBl. 2026 I No. 223, § 2(1) · gesetze-im-internet.de · retrieved 2026-10-19; Datenschutzbehörde (Austria), page on artificial intelligence and data protection · dsb.gv.at · retrieved 2026-10-19

What to do next

- ☐ For artistic or fictional works: disclose the existence of AI content in a way that does not hamper the work, for example in the credits or the caption.
- ☐ Record with a date why your system only performs standard editing and does not substantially alter the input; check again when its functions change.
- ☐ Write the result into your tool register or labelling checklist with today's date, and set a review date; a new tool or a new kind of use is the occasion to ask the questions again.

The labelling checklist (D5) of the AI Policy Toolkit records this per tool and per publication, with the provider evidence and the key dates prefilled.

Sources

1. Regulation (EU) 2024/1689 of 13 June 2024 (AI Act), consolidated version of 27 July 2026: Art. 3(3), (4) and (60), Art. 4, Art. 5(1)(f), Art. 50, Art. 99(4)(g) and (6), Art. 111(4), Art. 113. eur-lex.europa.eu · retrieved 2026-10-19; Art. 5(1)(ba) and (bb), Art. 50(2) and (6), Art. 111(4) · retrieved 2026-10-23.
2. Regulation (EU) 2026/1744 of 8 July 2026 (Digital Omnibus on AI), in force since 27 July 2026: Art. 1, points (20) and (39). eur-lex.europa.eu/eli/reg/2026/1744/oj · retrieved 2026-10-18.
3. European Commission, Guidelines on the transparency obligations under Article 50, content approved on 20 July 2026 (C(2026) 5054 final, annex): points 12 to 16, 38, 113 ff., 131, 133 to 138, 153 and 154. digital-strategy.ec.europa.eu · retrieved 2026-10-23. To be checked: formal adoption in all languages. Guidance, not law.
4. Germany: KI-Marktüberwachungs- und Innovationsförderungsgesetz of 22 July 2026, BGBl. 2026 I No. 223, § 2(1). gesetze-im-internet.de · retrieved 2026-10-19.
5. Austria: Datenschutzbehörde, page on artificial intelligence and data protection, undated. dsb.gv.at · retrieved 2026-10-19.

This memo is information based on the sources listed, generated on 23 October 2026 from the answers above. It is not legal advice and decides nothing on behalf of your business. Every statement carries its marker, every source its retrieval date; check the sources again before you rely on a date.